

FILED
KING COUNTY, WASHINGTON

AUG 12 2008

SEA
SUPERIOR COURT CLERK

Superior Court of Washington

County of King

In the Custody of:

TIMOTHY E. BENNETT, II,

Child,

No. 08-3-03956-4SEA

MELVINA ROBERSON,

Petitioner,

Motion and Declaration for Default
(MTDFL)

and

ZACHARIAH J. BENNETT and KELLY J.

BENNETT,

Respondent's

I. Motion

(Name of requesting party) MELVINA ROBERSON moves the court for an order of default against
(name of other party being defaulted) ZACHARIAH J. BENNETT and KELLY J. BENNETT. Venue
of this action is proper as set forth in the Declaration below.

Dated: 8-10-08

O.W. HOLLOWELL
Attorney for Petitioner

WSBA No.9163

II. Declaration

2.1 Proper Jurisdiction and Venue

The court has proper jurisdiction and venue pursuant to the allegations of the petition at the time
of filing.

The petitioner resides in King County, Washington State.

Motion and Declaration for Default
(MTDFL) 1 of 4

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Carnation, Washington 98014
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1 The child resides in King County, Washington State.

2 Respondent's reside in Denver County, Colorado.

3
4 **2.2 Jurisdiction Over the Other Party**

5 This court has jurisdiction over the other party because:

6 ☐ the other party is currently residing in Washington.

7 ☐ the petitioner and respondent lived in Washington during their marriage or domestic
8 partnership and the petitioner continues to reside, or be a member of the armed forces
9 stationed, in this state.

10 ☐ the petitioner and respondent may have conceived a child while within Washington.

11 ☒ The respondent **KELLY J. BENNETT** was personally served with summons and
12 petition within this state.

13 ☐ The other party submits to jurisdiction of this state by consent as evidenced by joinder or
14 consent to jurisdiction signed by respondent.

15 ☐ The other party engaged in sexual intercourse in the state of Washington as a result of
16 which the child may have been conceived.

17 ☒ The child resides in this State as a result of the acts or directives of the other parties.

18 **2.3 Service on Other Party**

19 The respondents were served with (documents) Ex Parte Restraining Order/Order To show
20 Cause; Summons For Non-parental Custody Proceeding; Non-parental Custody Petition; Order
21 Setting Domestic Non-parental Custody Case Schedule; Motion/Declaration For Ex Parte
22 Restraining Order And For Order To Show Cause; Declaration Of Petitioner In Support Of
23 Temporary Custody Of Timothy E. Bennett, II A Minor Child; Declaration Of Kelly J. Bennett In
24 Support Of Temporary Custody; Temporary Custody Order; Order of Child Support. Respondent
25 **ZACHARIAH J. BENNETT** was personally served in Denver, Colorado on May 30, 2008.
26

Respondent **KELLY J. BENNETT** was personally served and accepted service in King County, Washington on May 29, 2008.

☒ in the state of Washington, as to Respondent **KELLY J. BENNETT**, and

☒ in (state or country where served) Colorado, as to Respondent **ZACHARIAH J. BENNETT**. Service within the state of Washington could not be made for the following reasons: Respondent was living and working in the State of Colorado.

2.4 Time Elapsed Since Service on the Other Party

☒ The Respondent **KELLY J. BENNETT** was served within the state of Washington and more than 20 days have elapsed since the date of service.

☒ The Respondent **ZACHARIAH J. BENNETT** was served outside the state of Washington and more than 60 days have elapsed since the date of service.

2.5 Appearance of the Other Party

☒ The other parties have failed to appear.

2.6. Service members Civil Relief Act Statement

2.6.1 A. Service member status -- (name of other party) **ZACHARIAH J. BENNETT and **KELLY J. BENNETT**:**

☒ are not service members;

B. Factual basis:

☐ See the attached Defense Man Power Data Center Report obtained from <https://www.dmdc.osd.mil/scra/owa/home>.

1 [X] Other factual basis: **ZACHARIAH J. BENNETT's** mother and **KELLEY J.**

2 **BENNETT** believe neither **ZACHARIAH J. BENNETT** nor **KELLEY J. BENNETT**
3 are not service members or dependants of a service member.

4
5 C. [] As indicated above, the other party is on active duty and (check all that apply): NONE

6
7 2.6.2 A. Dependent of a service member status -- (name of other party) **ZACHARIAH J.**
8 **BENNETT** and **KELLEY J. BENNETT**:

9 [x] are not dependent's of a resident of Washington who is on active duty and is a
10 National Guard member or a Reservist;

11 B. Factual basis: N/A

12
13 C [] As indicated above, the other party is a dependent of a resident of Washington who is
14 on active duty and is a National Guard member or a Reservist and (check all that apply): N/A

15
16 2.7 Other

17
18 I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and
19 correct.

20
21 Signed at Carnation, Washington on 8-10-08.

22 
23 **MELVINA ROBERSON**

24
25
26
Motion and Declaration for Default
(MTDFL) 4 of 4

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JUN - 5 2008

FOR FILING

BEST AVAILABLE IMAGE POSSIBLE

IN THE
SUPERIOR COURT, IN AND FOR THE COUNTY OF KING, STATE OF WASHINGTON

IN RE THE CUSTODY OF
TIMOTHY E. BENNETT, II
CHILD
MELVINA ROBERSON

Plaintiff/Petitioner

vs.
ZACKARIAH J. BENNETT AND KELLY J.
BENNETT

Defendant/Respondent

Hearing Date: 06/12/2008

CAUSE NO:
08-3-03956-4 SEA

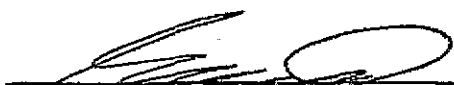
AFFIDAVIT OF SERVICE OF:
EX PARTE RESTRAINING ORDER/ORDER TO SHOW
CAUSE; SUMMONS FOR NONPARENTAL CUSTODY
PROCEEDING; NONPARENTAL CUSTODY PETITION;
ORDER SETTING DOMESTIC NONPARENTAL CUSTODY
CASE SCHEDULE; MOTION/DECLARATION FOR EX
PARTE RESTRAINING ORDER AND FOR ORDER TO
SHOW CAUSE; DECLARATION OF PETITIONER IN
SUPPORT OF TEMPORARY CUSTODY OF TIMOTHY E.
BENNETT, II A MINOR CHILD; DECLARATION OF KELLY
J. BENNETT IN SUPPORT OF TEMPORARY
CUSTODY; TEMPORARY CUSTODY ORDER; ORDER OF
CHILD SUPPORT

The undersigned, being first duly sworn, on oath deposes and says: That s(he) is now and at all times herein mentioned was a citizen of the United States, over the age of eighteen, not an officer of a plaintiff corporation, not a party to nor interested in the above entitled action, has the authority to serve pleadings in the State named below, and is competent to be a witness therein.

On the 30th day of May, 2008, at 1:27 PM, at the address of 5520 FEDERAL Boulevard SP. 46, DENVER, Denver County, CO; this affiant served the above described documents upon ZACKARIAH J BENNETT, by then and there personally delivering 1 true and correct copy(ies) thereof, by then presenting to and leaving the same with ZACKARIAH J BENNETT, NAMED DEFENDANT, A white male approx. 25-30 years of age 5'10"-6'0" in height weighing 160-180 lbs with brown hair.

No Information was provided or discovered that indicates that the subjects served are members of the U.S. military.

DATED this 30th day of May, 2008.


Gordon Mink

SUBSCRIBED AND SWORN to before me this 30th day of May, 2008